

IV. Expert fees and daily transcript costs.

Plaintiff also requests the Court to award expert fees in the amount of \$8,472.88 and daily transcript costs in the amount of \$4,424.55. The Court should deny the request for expert fees but grant the request for recovery of daily transcript costs. An award of reasonable attorney's fees and costs, including expert witness fees, is discretionary under FEHA. (Gov. Code, § 12965(c)(6).)

The expert fees incurred by Plaintiff cannot be deemed reasonable and necessary fees. Plaintiff initially claimed multiple violations of FEHA but ended up litigating a single claim for retaliation while abandoning his claim for harassment and economic damages. "An award may take into account the scale of the plaintiff's success, and it must not encourage 'unnecessary litigation of claims that serve no public purpose either because they have no broad public impact or because they are factually legally weak.' [Citation.]" (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 235.)

Plaintiff should nevertheless recover his cost for daily transcript. Plaintiff explains that this cost of reasonably necessary to keep track of daily trial testimonies, which would have been beneficial for both parties in the event of any post-trial disputes that may arise.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304019	LODES VS COUNTY OF RIVERSIDE	MOTION TO TAX COSTS

Tentative Ruling:

The Court GRANTS IN PART and DENIES IN PART Defendant's Motion to Tax Costs.

The Court DENIES the motion to strike the entire memorandum of costs as prevailing parties are entitled to cost as a matter of right (Code Civ. Proc., § 1032(b).), and Defendant, the moving party, provides no legal authority in support of the position that Plaintiff bears the initial burden to show that the costs were necessary and reasonable for the conduct of litigation.

The Court GRANTS in part and DENIES in part the motion to tax costs. The Court GRANTS the motion to tax \$9,027.71 billed under Item Nos. 4, 8, 15 of the cost memorandum. The Court DENIES the motion as to \$2,000 billed under Item No. 13 of the cost memorandum.